

VERSION NO. 2	MANUAL TITLE FINANCE AND ADMINISTRATION MANUAL	DOCUMENT NO. FAM 4.10
	DOCUMENT NAME EMPLOYEE DISCIPLINE	REVISION NO. 0
		EFFECTIVITY DATE FEBRUARY 1, 2020
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1. OBJECTIVES

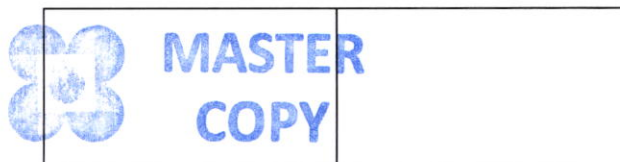
- 1.1 To define various offenses and their corresponding remedial actions.
- 1.2 To identify the disciplinary measures to ensure implementation of PSHSS rules and regulations.
- 1.3 To ensure and enforce compliance at all times with the standards of job performance and personal behavior.

2. SCOPE

This covers rules and procedures in handling administrative and disciplinary cases in the PSHS System. This applies to all employees of PSHSS including contractual and permanent employees.

3. POLICIES

- 3.1. Unless otherwise repealed, revised, or amended by applicable laws, board resolution, or government issuances, the following policies shall remain in effect for purposes of this document. In case of any conflict, the existing law or regulation shall prevail.
- 3.2. In case of an amendment, revision or repeal in whole or in part of any provision in the law or rule as herein aforementioned, such amendment, revision or repeal shall prevail, as the basis of the action, without further need for a revision of this document.
- 3.3. Definition of Terms, with reference to Republic Act No. 6713 Code of Conduct and Ethical Standards for Public Official and Employees, the 2017 Rules on Administrative Cases in the Civil Service (RACCS) and other pertinent law or rules:
 - 3.3.1. Disciplining Authority - refers to the Board of Trustees
 - 3.3.2. Person complained of – refers to the person who is subject of a complaint but who is not yet issued a notice of charge/s or formal charge by the disciplining authority.



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3.3.3. Respondent - refers to the person who is issued a notice of charge/s or formal charge by the disciplining authority.

3.3.4. "Family of public officials or employees" means their spouses and unmarried children under eighteen (18) years of age.

3.3.5. "Relatives" refers to any and all persons related to a public official or employee within the fourth civil degree of consanguinity or of affinity, including bilas, inso and balae

3.3.6. Preventive Suspension – is not a penalty. It is designed merely as a measure of precaution so that the official or employee charged may be removed from the scene of his/her alleged misfeasance/malfeasance/nonfeasance while the same is being investigated.

3.3.7. "Gift" refers to a thing or a right disposed of gratuitously, or any act or liberality, in favor of another who accepts it, and shall include a simulated sale or an ostensibly onerous disposition thereof. It shall not include an unsolicited gift of nominal or insignificant value not given in anticipation of, or in exchange for, a favor from a public official or employee.

3.3.8. Loan covers simple loan and *commodatum* as well as guarantees, financing arrangement or accommodation intended to ensure its approval. *Commodatum* refers to a contract whereby one of the parties delivers to another something not consumable so that the latter may use the same for a certain time and return it.

3.3.9. The term "just debts" shall apply only to: Claims adjudicated by a court of law, or claims the existence and justness of which are admitted by the debtor.

3.2 Sources and Grounds for Administrative and/or Criminal Liability.

No officer or employee of the agency shall be subjected to disciplinary action except for cause as determined by the law or rules as provided hereunder, and after due process:



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3.2.1. R.A. 6713, The Code of Republic Act No. 6713 Code of Conduct and Ethical Standards for Public Official and Employees;

3.2.2. 2017 Rules on Administrative Cases in the Civil Service (RACCS);

3.2.3. RA No. 7877, The Sexual Harassment Act, CSC Resolution on No. 01-0940 dated May 21, 2001;

3.2.4. R.A. 9485 or the Anti-Red Tape Act of 2007;

3.2.5. A.O. 5 series of 2008;

3.2.6. A.O. 6 series of 2005 (DOST Code of Conduct and Ethical Standards)

4.0 PROCEDURES

4.1. The DOST System Rules of Procedure for Disciplinary Cases in the DOST System shall apply except those covered by Special Laws. In the absence of any applicable provisions in the DOST Rules, pertinent provisions of the Rules of Court, the CSC Rules on Administrative Cases in the Civil Service, prevailing jurisprudence, and related government issuances may be applied suppletorily.

4.2. For sexual harassment cases, the PSHS System IRR on R.A. 7877 shall apply.

5.0 LIST OF FORMS AND REPORTS

6.1 Forms

None

6.2 Reports

None

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